

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

15. JUSTIN NEFF V. KAYLA LATTIMER

22FL0990

Respondent filed a Request for Order (RFO) on January 22, 2026, seeking modification of the child custody and parenting plan orders as well as orders regarding a third party. The parties were not referred to Child Custody Recommending Counseling (CCRC) as they had participated in CCRC within the prior six months. Proof of Service shows Petitioner was served some, but not all the necessary documents on February 28, 2026. The court drops the matter from calendar due to the lack of proper service.

Petitioner filed an RFO on February 18, 2026, seeking a modification of the current parenting plan orders. Once again, the parties were not referred to CCRC for the reasons set forth above. Proof of Service shows Respondent was served some, but not all the necessary documents on February 22, 2026. The court drops the matter from calendar due to the lack of proper service.

Respondent filed an ex parte application for emergency orders on March 5, 2026. Petitioner filed a Responsive Declaration on March 5th. The court denied the request on an ex parte basis, however, referred the parties to an emergency set CCRC appointment on March 24, 2026, and a review hearing on April 2, 2026. There is no Proof of Service showing Petitioner was properly served.

Petitioner filed a Responsive Declaration to Request for Order on March 27, 2026. There is no Proof of Service for this document therefore it cannot be considered by the court.

The parties attended CCRC as scheduled. They were unable to reach any agreements therefore a report with recommendations was prepared on March 31st and mailed to the parties on April 1st.

After reviewing the filings as outlined above, the court finds the recommendations contained in the March 31, 2026 CCRC report to be in the best interests of the children. They are hereby adopted as the orders of the court. Petitioner is strongly admonished to abide by the Respect Guidelines. This includes ensuring that his significant other does not make disparaging remarks about Respondent in the presence of the children or within earshot of them. Failure to do so may be found to be contempt of court and punishable by monetary or other sanctions.

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Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #15: THE JANUARY 22, 2026 RFO AND THE FEBRUARY 18, 2026 RFO ARE BOTH DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE. AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE MARCH 31, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE CHILDREN. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. PETITIONER IS STRONGLY ADMONISHED TO ABIDE BY THE RESPECT GUIDELINES. THIS INCLUDES ENSURING THAT HIS SIGNIFICANT OTHER DOES NOT MAKE DISPARAGING REMARKS ABOUT RESPONDENT IN THE PRESENCE OF THE CHILDREN OR WITHIN EARSHOT OF THEM. FAILURE TO DO SO MAY BE FOUND TO BE CONTEMPT OF COURT AND PUNISHABLE BY MONETARY OR OTHER SANCTIONS.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.